

COMMISSION IMPLEMENTING DECISION (EU) 2015/348

CELEX id	32015D0348
Document type	Decision
Policy domain	Law
Year	2015
Legal actor type	Public agency
Applicable role	Applicant
Language	en

COMMISSION IMPLEMENTING DECISION (EU) 2015/348

of 2 March 2015

concerning the consistency of certain targets included in the national or functional airspace block plans submitted pursuant to Regulation (EC) No 549/2004 of the European Parliament and of the Council with the Union-wide performance targets for the second reference period

(notified under document C(2015) 1293)

(Text with EEA relevance)

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Regulation (EC) No 549/2004 of the European Parliament and of the Council of 10 March 2004 laying down the framework for the creation of the single European sky (the framework Regulation) (1), and in particular Article 11(3)(c) thereof,

Whereas:

(1)

Pursuant to Regulation (EC) No 549/2004, the Member States are to adopt national or functional airspace block ('FAB') plans, including binding national targets or targets at the level of FABs, ensuring consistency with the Union-wide performance targets. That Regulation also provides that the Commission is to assess the consistency of those targets on the basis of the assessment criteria referred to in point (d) of its Article 11(6) and that the Commission may decide to issue recommendations in case it identifies that those criteria have not been met. Detailed rules in this regard have been set out in Commission Implementing Regulation (EU) No 390/2013 (2).

(2)

Union-wide performance targets in the key performance areas of safety, environment, capacity and cost-efficiency for the second reference period (2015-2019) were adopted by Commission Implementing Decision 2014/132/EU (3).

(3)

The Member States submitted to the Commission the performance plans, all at FAB level, by 1 July 2014. In a number of cases the initial submission was in a draft form only. Furthermore, a number of plans were subsequently modified by addenda or corrigenda, the latest one dated 9 January 2015. For its assessment, the Commission has based itself on the most recent information submitted.

(4)

The Performance Review Body, which is charged with assisting the Commission in the implementation of the performance scheme pursuant to Article 3 of Implementing Regulation (EU) No 390/2013, submitted

an initial assessment report to the Commission on 7 October 2014 and an updated version of that report on 15 December 2014. The Commission further received from the Performance Review Body reports based on information from national supervisory authorities on the monitoring of the performance plans and targets submitted in accordance with Article 18(4) of Implementing Regulation (EU) No 390/2013.

(5)

Concerning the key performance area of safety, the consistency of the targets submitted by the Member States regarding the effectiveness of safety management and the application of severity classification on the basis of the Risk Analysis Tool (RAT) methodology has been assessed, in accordance with the principles laid down in point 2 of Annex IV to Implementing Regulation (EU) No 390/2013. That assessment has demonstrated that the targets submitted by all Member States, as regards FABCE, UK-IR FAB, FABEC, Baltic FAB, Blue Med FAB, Danube FAB, DK-SE FAB, NEFAB and SW FAB, are consistent with the relevant Union-wide performance target.

(6)

Concerning the key performance area of environment, the consistency of the targets submitted by the Member States has been assessed, in accordance with the principles laid down in point 3 of Annex IV to Implementing Regulation (EU) No 390/2013, by using the respective FAB reference values for horizontal en route flight efficiency of the actual trajectory that, when applied, ensure at Union level that the Union-wide performance target is met, calculated by the Network Manager and set out in the Network Operations Plan (2014-2018/2019) in its most recent version of June 2014 ('Network Operations Plan'). That assessment has demonstrated that the targets submitted by all Member States, as regards FABCE, UK-IR FAB, FABEC, Baltic FAB, Blue Med FAB, Danube FAB, DK-SE FAB, NEFAB and SW FAB, are consistent with the relevant Union-wide performance target.

(7)

Concerning the key performance area of capacity, the consistency of the targets submitted by the Member States for en route Air Traffic Flow Management (ATFM) delay has been assessed, in accordance with the principles laid down in point 4 of Annex IV to Implementing Regulation (EU) No 390/2013, by using the respective FAB reference values for capacity that, when applied, ensure at Union level that the Union-wide performance target is met, calculated by the Network Manager and set out in the Network Operations Plan. That assessment has demonstrated that the targets submitted by the United Kingdom and Ireland as regards UK-IR FAB, by Poland and Lithuania as regards Baltic FAB, by Denmark and Sweden as regards DK-SE FAB and by Estonia, Finland and Latvia as regards NEFAB are consistent with the relevant Union-wide performance target.

(8)

Concerning the key performance area of cost-efficiency, the targets expressed in en route determined unit costs submitted by the Member States have been assessed, in accordance with the principles laid down in point 5, in conjunction with point 1, of Annex IV to Implementing Regulation (EU) No 390/2013, by taking account of the trend of en route determined unit costs over the second reference period and the combined period of the first and the second reference period (2012-2019), the number of service units (traffic forecast) and the level of en route determined unit costs in comparison to Member States having a similar operational and economic environment. That assessment has demonstrated that the targets submitted by the United Kingdom and Ireland as regards UK-IR FAB, by Poland and Lithuania as regards Baltic FAB, by Cyprus, Greece and Malta as regards Blue Med FAB, by Bulgaria and Romania as regards Danube FAB, by Croatia, the Czech Republic, Slovenia and Hungary as regards FABCE, by Portugal and Spain for Spain Continental and Spain Canarias charging zones as regards FAB SW, by Denmark and Sweden as regards DK-SE FAB and by Estonia, Finland and Latvia as regards NEFAB are consistent with the relevant Union-wide performance target.

(9)

Therefore, the Commission considers that the targets included in the performance plans drawn up by the United Kingdom and Ireland as regards the UK-IR FAB, by Denmark and Sweden as regards the DK-SE FAB, by Poland and Lithuania, as regards the Baltic FAB and by Estonia, Finland and Latvia as regards NEFAB are consistent with the Union-wide performance targets in all four key performance areas. The Commission further considers that the targets submitted by Belgium, Luxembourg, France, Germany and the Netherlands as regards FABEC, by Austria, Croatia, Czech Republic, Hungary, Slovakia and Slovenia as regards FABCE, by Cyprus, Greece, Italy and Malta as regards Blue Med FAB, Bulgaria and Romania as regards Danube FAB and by Portugal and Spain as regards SW FAB are consistent with the Union-wide performance targets in the key performance areas of safety and environment. The Commission also considers that the targets submitted by Cyprus, Greece and Malta as regards Blue Med FAB, by Bulgaria and Romania as regards the Danube FAB, Croatia, the Czech Republic, Slovenia and Hungary as regards the FAB CE and Portugal and Spain as regards the SW FAB are consistent with the Union-wide performance targets in the key performance areas of cost-efficiency. Therefore, in relation to all those targets there is no need to issue recommendations that the national supervisory authorities concerned propose revised targets. With respect to the targets submitted by those Member States that are not consistent with the relevant Union-wide performance targets, the Commission has issued such recommendations, as set out in the Commission Implementing Decision concerning inconsistency of targets C(2015) 1263.

(10)

The measures provided for in this Decision are in accordance with the opinion of the Single Sky Committee,

HAS ADOPTED THIS DECISION:

Article 1

The targets included in the performance plans submitted pursuant to Regulation (EC) No 549/2004, listed in the Annex, are consistent with the Union-wide performance targets for the second reference period set out in Implementing Decision 2014/132/EU.

Article 2

This Decision is addressed to the Member States.

Done at Brussels, 2 March 2015.